

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN MOBILE ELECTRONIC
DEVICES AND COMPONENTS
THEREOF**

Investigation No. 337-TA-_____

COMPLAINANTS' INITIAL STATEMENT ON THE PUBLIC INTEREST

Pursuant to 19 C.F.R. § 210.8(b), Complainants trinamiX Sensing LLC and trinamiX GmbH (collectively, “trinamiX”) respectfully submit this Statement on the Public Interest concurrently with their Complaint. The limited exclusion order and cease and desist orders trinamiX seeks against Proposed Respondent Apple Inc. (“Apple”) will not have an adverse effect on public health and welfare, competitive conditions in the United States economy, the production of like or directly competitive articles in the United States, or United States consumers.

trinamiX seeks (i) a limited exclusion order pursuant to 19 U.S.C. § 1337(d) barring the importation and/or sale for importation of certain models of Apple iPhones and iPads and components thereof that infringe one or more claims of the Asserted Patents (the “Accused Products”); and (ii) cease and desist orders pursuant to 19 U.S.C. § 1337(f) prohibiting Apple and its subsidiaries, related companies, distributors, and agents from engaging in further unfair acts relating to the Accused Products.

The Accused Products are consumer electronics. They are not the type of article the Commission has found to implicate public interest concerns if excluded. *Certain Baseband Processor Chips and Chipsets*, Inv. No. 337-TA-543, Comm’n Op. at 136-37 (June 19, 2007); *Spansion, Inc. v. Int’l Trade Comm’n*, 629 F.3d 1331, 1360 (Fed. Cir. 2010). Enforcing trinamiX’s intellectual property through the requested remedial orders will serve the public interest. *See, e.g., Certain Laser Bar Code Scanners*, Inv. No. 337-TA-551, Comm’n Op. at 24 (June 14, 2007) (“[T]he public interest favors the protection of U.S. intellectual property rights by excluding infringing imports.”). As it has on numerous occasions, the Commission need not delegate public interest fact-finding to the ALJ. *See, e.g., Certain Wireless Communication Devices*, Inv. No. 337-TA-1480, Notice of Institution at 2-4 (Jan. 15, 2026) (instituting investigation concerning mobile phones and tablet computers without directing the ALJ to develop a record on the public-interest

factors); *Certain Mobile Electronic Devices and Laptop Computers*, Inv. No. 337-TA-1215, Notice of Institution at 2-3 (Aug. 19, 2020) (same with respect to “mobile devices, tablets, smartwatches, and laptop computers sold under the Apple brand name”).

I. USE OF THE ACCUSED PRODUCTS IN THE UNITED STATES

The Accused Products are certain Apple iPhones and iPads and components thereof. Consumers in the United States use them for general communication and computing, including voice and video calls, messaging, electronic mail, web browsing, photography, video recording, media playback, and third-party applications.

II. THERE ARE NO PUBLIC HEALTH, SAFETY, OR WELFARE CONCERNS RELATING TO THE REQUESTED REMEDIAL ORDERS

The Accused Products are not medical devices, pharmaceuticals, or vaccines, are not otherwise health related, and do not implicate any national security interest. They are consumer electronics sold at retail. The Commission has denied relief on public interest grounds in only three investigations, each involving inadequate domestic supply of an article necessary to an important health or welfare need. *See Spansion*, 629 F.3d at 1360. That smartphones and tablets may host health, safety, or emergency applications does not distinguish the Accused Products from the myriad alternatives available in the United States. The Commission has rejected arguments to the contrary. *See, e.g., Certain Personal Data & Mobile Commc’n Devices & Related Software*, Inv. No. 337-TA-710, Comm’n Op. at 74 (Dec. 29, 2011) (“That ‘mobile phones’ may play a critical role in public health and safety does not mean that [the infringing phones] play a critical role in public health and safety that other smartphones cannot.”). Emergency calling, location services, and connectivity remain available on every competing device identified below.

III. THERE ARE NUMEROUS LIKE OR DIRECTLY COMPETITIVE ARTICLES THAT COULD REPLACE THE ACCUSED PRODUCTS IF EXCLUDED

Numerous third parties sell smartphones and tablets in the United States that are like or

directly competitive with the Accused Products and that would remain available to consumers if the Accused Products were excluded. Smartphones are supplied by, among others, Samsung, Google, and Motorola. Tablets are supplied by, among others, Samsung, Amazon, Microsoft, and Lenovo. Moreover, any exclusion would not apply to Apple devices that do not use the Face ID feature (e.g., certain iPads, the iPad Air, and the iPad mini) or phones and tablets offered by third parties. Notably, Apple’s upcoming “iPhone Ultra” is expected to be released without Face ID.¹

These alternative devices perform the same functions as the Accused Products. Consumers seeking any function the Accused Products provide, including secure device authentication, can obtain it from other suppliers today. The Commission has ordered relief against smartphones and tablets on that basis before. *See Certain Electronic Digital Media Devices & Components Thereof*, Inv. No. 337-TA-796, Comm’n Op. at 114-15 (Sept. 6, 2013); *see also Certain Digital Televisions & Certain Prods. Containing Same & Methods of Using Same*, Inv. No. 337-TA-617, Comm’n Op. at 15 (Apr. 23, 2009). Each of these alternatives is available for purchase in the United States.²

IV. APPLE AND THIRD PARTIES HAVE THE CAPACITY TO REPLACE THE VOLUME OF ACCUSED PRODUCTS IN A COMMERCIALLY REASONABLE TIMEFRAME

No public interest concerns arise where the market contains an adequate supply of substitutes for the articles subject to a remedial order. *Certain Lens-Fitted Film Packages*, Inv. No. 337-TA-406, Comm’n Op. at 18 (June 28, 1999). Apple itself admits that “[t]he markets for [its] products and services are highly competitive” and it “face[s] substantial competition from

¹ See, e.g., 9to5Mac, *iPhone Ultra is coming, but it might not have these key features*, <https://9to5mac.com/2026/08/24/iphone-ultra-wont-have-these-five-features/>.

² See, e.g., <https://www.samsung.com/us/smartphones/all-smartphones/>; <https://store.google.com/category/phones?hl=en-US>; <https://www.motorola.com/us/en/smartphones>; <https://www.samsung.com/us/tablets/all-tablets/>; <https://www.amazon.com/fire-tablets/s?k=fire+tablets>; <https://www.microsoft.com/en-us/store/b/buy-surface-pro>; <https://www.lenovo.com/us/en/tablets/>.

companies that have significant technical, marketing, distribution and other resources.”³ The third-party suppliers identified above already sell smartphones and tablets in the United States through established retail, carrier, and online distribution channels. Apple also currently sells iPads that do not use the Face ID feature.⁴

Replacement would require no new capacity and no new sales channels. As an initial matter, smartphone sales have declined rapidly in recent years.⁵ This decline is expected to continue into the future.⁶ Third-party suppliers, which account for a significant share of smartphone unit shipments in the United States, would be able to quickly replace the excluded iPhones.⁷ Tablet manufacturing capacity is likewise available. Worldwide, Samsung and Lenovo alone shipped approximately 8.8 million tablets in the first quarter of 2026, and suppliers other than Apple shipped approximately 22.2 million tablets in that quarter.⁸ Consumers would therefore continue to have access to products with comparable features (*i.e.*, the same video and voice calling, video recording, internet browsing, and third party application functionality).

V. THE REQUESTED REMEDIAL ORDERS WILL NOT ADVERSELY IMPACT U.S. CONSUMERS

Consumers who would have purchased an Accused Product retain the full range of

³ Apple Inc., 2025 Form 10-K, at 2-3.

⁴ See Apple, *Shop iPad Air*, <https://www.apple.com/shop/buy-ipad/ipad-air>; Apple, *Shop iPad mini*, <https://www.apple.com/shop/buy-ipad/ipad-mini>.

⁵ IDC, *Smartphone Shipments Set for Record 16.7% Drop in 2026, as the Memory Crisis Hits Full Force*, <https://www.idc.com/resource-center/blog/smartphone-shipments-set-for-record-16-7-drop-in-2026-as-the-memory-crisis-hits-full-force/> (forecasting a 16.7% decline in worldwide smartphone shipments in 2026 and continued contraction into 2027).

⁶ *Id.*

⁷ Omdia, *US Smartphone Market Declined 3% in 1Q26 Amid Pricing Pressure and Carrier Subsidy Shifts* (May 27, 2026), <https://omdia.tech.informa.com/pr/2026/may/us-smartphone-market-declined-3percent-in-1q26-amid-pricing-pressure-and-carrier-subsidy-shifts>.

⁸ Omdia, *Global Tablet Market Sees Marginal Growth at 0.1% in Q1 2026 as Demand Outlook Weakens* (May 7, 2026), <https://www.businesswire.com/news/home/20260506153578/en/Omdia-Global-Tablet-Market-Sees-Marginal-Growth-at-0.1-in-Q1-2026-as-Demand-Outlook-Weakens>.

alternatives described above. Apple cannot resist relief merely because some consumers prefer specific models of its devices, as “[t]he mere constriction of choice cannot be a sufficient basis” for denying a remedy. *Certain Personal Data & Mobile Commc’n Devices*, Inv. No. 337-TA-710, Comm’n Op. at 69. Moreover, the requested remedial orders would apply only to imports and sales after any remedial orders are issued. They would not disable, degrade, or restrict the use of the more than 150 million Apple devices already in service in the United States,⁹ or the millions of Apple devices sold before the issuance of any remedial order. This is important given the consumer shift to holding their devices for long durations and the minimal advancement in smartphone technology in recent years.¹⁰

VI. CONCLUSION

The requested remedial orders would not be contrary to the public interest. Apple has a history of profiting off others’ intellectual property rights, which is precisely the type of conduct that Section 337 is designed to prevent. *See, e.g., Certain Wearable Electronic Devices*, Inv. No. 337-TA-1266, Complainant’s Public Interest Statement at 5 (Apr. 20, 2021); *Certain Light-Based Physiological Measurement Devices*, Inv. No. 337-TA-1276, Compl. Public Interest Statement at 1-2 (June 29, 2021); *Certain Mobile Telephones, Tablet Computers with Cellular Connectivity, & Smart Watches with Cellular Connectivity*, Inv. No. 337-TA-1299, Compl. Public Interest Statement at 2 (Jan. 17, 2022). The Commission has long held that the public interest favors the protection of U.S. intellectual property rights by excluding infringing imports, and it should issue the requested remedial orders without delegating public interest fact-finding to the ALJ.

⁹ Business of Apps, *Apple Statistics (2026) - Business of Apps*, <https://www.businessofapps.com/data/apple-statistics/>.

¹⁰ Computer Weekly, *US citizens hold onto iPhones longer than ever*, <https://www.computerweekly.com/news/366648790/US-citizens-hold-onto-iPhones-longer-than-ever>; Yahoo! Finance, *Apple's Lack of iPhone Innovation Is Becoming a Big Problem*, <https://finance.yahoo.com/news/apples-lack-iphone-innovation-becoming-094500873.html>.

Dated: September 3, 2026

Respectfully submitted,

/s/ S. Alex Lasher

S. Alex Lasher
Carl Spilly
QUINN EMANUEL URQUHART &
SULLIVAN, LLP
555 13th Street NW, Suite 600
Washington, D.C. 20004
Tel.: (202) 538-8000
alexlasher@quinnemanuel.com
carlspilly@quinnemanuel.com

Kevin P.B. Johnson
Todd Briggs
QUINN EMANUEL URQUHART &
SULLIVAN, LLP
555 Twin Dolphin Drive, 5th Floor
Redwood Shores, CA 94065
Tel : 650-801-5000
Fax: 650-801-5100
kevinjohnson@quinnemanuel.com
toddbriggs@quinnemanuel.com

Nima Hefazi
QUINN EMANUEL URQUHART &
SULLIVAN, LLP
865 S. Figueroa St., 10th Floor
Los Angeles, CA 90017
Tel : (213) 443-3000
Fax: (213) 443-3100
nimahefazi@quinnemanuel.com

*Counsel for Complainants trinamiX Sensing LLC
and trinamiX GmbH*